

### 2d SNT account

Appearance is required for continued hearing on 2d SNT account.

### 3d SNT account

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Clarification is needed: the 3d account shows the trust purchased a vehicle. Such a purchase is ordinarily scheduled as a change in the form of assets. If title was taken in the name of beneficiary, the purchase appears to be an improper distribution; if title was taken in the name of a third party, the purchase appears to be an improper gift of trust assets. If title remains in the trust, the trust continues to hold a valuable corpus, bond remains required, and future accounts will be required.

In light of the low value of estate cash reserves, it is recommended total reasonable attorney fees and costs for all accounts be fixed at \$15,000.00.

## **2. S-PR-0012062 In Re the Estate of Trocha, Robert John**

Missing waiver of personal representative fees by Madison Trocha, former joint personal representative of the estate.

Clarification is needed: the estate is a non-cash estate. Petitioner should show how requested attorney fees are to be paid. The court will not ordinarily approve fees where there are no assets to pay fees.

## **3. S-PR-0012117 In Re the Estate of Lewis, Edward**

Appearance is required for continued hearing on petition for final distribution.

Missing corrected I&A referred to in ¶ 8 of the petition.

Clarification is needed: the estate is a non-cash estate. Petitioner should show how requested attorney fees are to be paid. The court will not ordinarily approve fees where there are no assets to pay fees.

The request to approve distribution of the estate must be denied. Petitioners admit distributing the entirety of the estate contrary to decedent's will (which limits distribution to decedent's trust) and to the underlying trust (under which Steven Lewis's trust share is preserved for his children (see Art. 12 §§ 1–2). See also Declaration of Harake, filed June 20, 2023, at 1:26–28. The court should not authorize testate distribution contrary to the controlling testamentary instruments.

It is recommended the petition be deemed one to terminate administration under Prob.C. § 12251 as there are no assets in the estate from which to award fees or which can be distributed to any person. After termination of administration, the parties would be free to address any outstanding concerns (such as fees) as they may privately determine.